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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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General Comment

From:

Andi Santagata

Cartoonist

Upper Valley, Vermont

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a working class American who has worked in the cartooning and video game industry for the past 17 years. I have worked hard for years to develop the skills and knowledge to build my business, and have been proud to contribute to the great American institutions of entertainment that define us as a culture, from film to comic books.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American jobs and bodies of work like mine with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. Any work I create, without my consent or knowledge, can be twisted to anyone else's use and profit. How would you feel if someone told you they could take your entire life's work, act like they made it, and then sell it to other people without you seeing a dime?

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation. I am here to say that the American people are the backbone of American innovation.

The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things? Is it not incredibly un-American to say that anything you create is automatically free to use by the state or state-approved corporations?

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

The government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems. The AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. As someone with a robust history of work in game development, I've been proud to help develop many AI systems of my own design, including pathing and modeling human behavior. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law - it would fundamentally destroy the institution of American entertainment, one of our proudest accomplishments.

Thank you for the opportunity to comment on these important issues.